

CV-26-000861 CASTRO, VINCENT vs ADVANTAGE SALES & MARKETING LLC - Defendant Advantage Sales & Marketing LLC's Motion to Compel Arbitration of Individual and Individual Paga Claims, Strike Putative Class Claims, and Stay Non-Individual Paga Claims Pending Arbitration – HEARING REQUIRED.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: Defendant's Request for Judicial Notice of the state cases is denied as the Court cannot consider them for any purpose. (See TBG Ins. Service Corp. v. Superior Court (2002) 96 Cal.App.4th 443, 447 fn. 2; California Rule of Court 8.1115.) Fisher & Phillips LLP is now on actual notice of this rule. The Request for Judicial Notice in the Reply is likely to be granted, and the use of federal cases at every level is permissible as persuasive authority. Nonetheless, before considering these rulings, Plaintiff has a right to differentiate the cases and to cite to any other citable (federal or published state) cases to assist the Court. (See Evidence Code § 452.)

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